

OFFICE OF THE SECRETARY

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September 20, 2018

Honorable Franklin Stephenson
Judge of the Superior Court
County of San Joaquin
180 E. Weber Avenue, Suite 1306J
Stockton, CA 95202

Re: Facundo, Joe
CDC No.: AI6854
Case No.: SF118024A
Date of Sentence: 9/16/2011

Dear Honorable Franklin Stephenson:

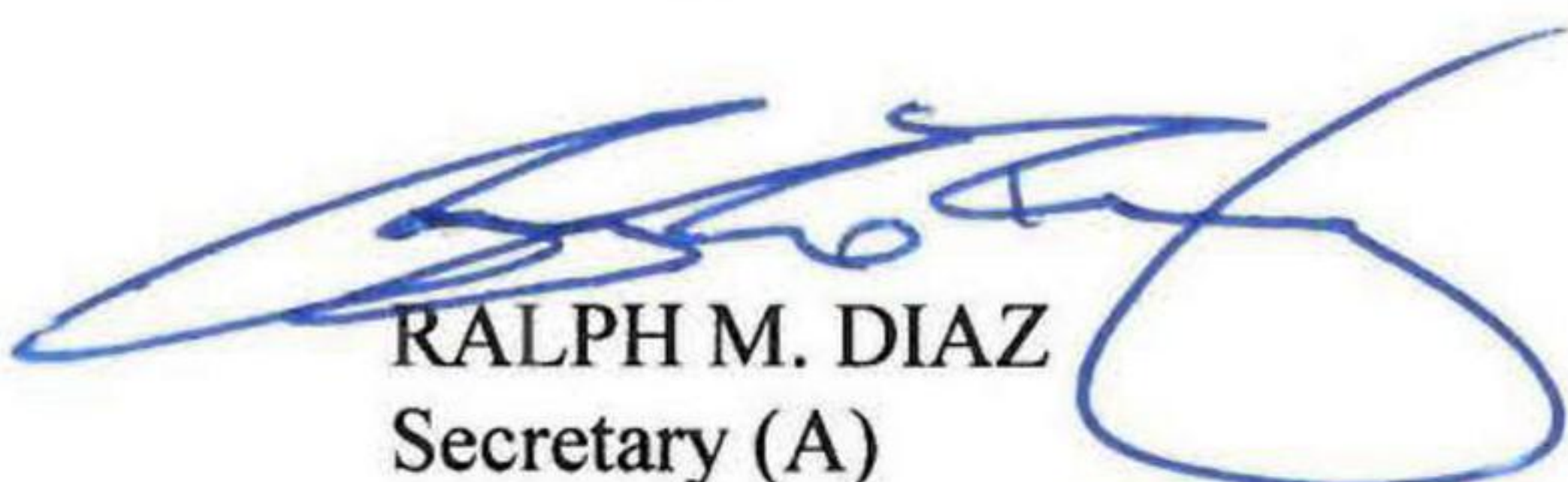
The purpose of this letter is to provide the court with authority to resentence Joe Facundo pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Facundo was sentenced in 2011, and was convicted of section 245, subdivision (A)(1), ADW/ASSLT W/FRC LIKE GBI. The trial court sentenced inmate Facundo on 9/16/2011. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Facundo's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Facundo's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

A blue ink signature of Ralph M. Diaz, written in a cursive style.

RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Linda L. Lofthus, San Joaquin County Presiding Judge
San Joaquin District Attorney
Public Defender

**ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**

[Not to be used for multiple count convictions or for 1/3-consecutive sentences]

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: SAN JOAQUIN, STOCKTON			Filed SEP 19 2011 ROSA JUNQUEIRO, CLERK By  DEPUTY		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JOE FACUNDO		DOB: 07-16-93			CASE NUMBER SF118024A
AKA: CII NO.: ----- BOOKING NO.: 1117366		☐ NOT PRESENT			
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT			
DATE OF HEARING 09-16-11	DEPT. NO. 35	JUDGE FRANKLIN STEPHENSON			
CLERK CATHY GRAHAM	REPORTER ROSE ANN LOW	PROBATION NO. OR PROBATION OFFICER ☒ IMMEDIATE SENTENCING			
COUNSEL FOR PEOPLE G. BROOKS, DDA		COUNSEL FOR DEFENDANT M. KOWALSKI, DPD ☒ APPTD.			

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	TIME IMPOSED	
						JURY	COURT	PLEA		YRS.	MOS.
2	PC	245(A)(1)	ADW/ASSLT W/FRC LIKELY GBI	2011	09-16-11			X	M	3	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
2	12022.7(A)	3	186.22(B)(1)	3			6 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$ 200.00 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4(f): ☐ \$ _____ / ☒ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
☐ *Victim name(s), if known, and amount breakdown in item 8 below. ☐ *Victim name(s) in probation officer's report.

Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☒ Court Security Fee of \$ 40.00 per PC 1465.8. ☒ Criminal Conviction Assessment of \$ 30.00 per GC 70373.

6. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify): _____

7. IMMEDIATE SENTENCE: ☒ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Deft's Race/Nat'l Origin HIS

8. Other orders (specify): - **PLUS \$20.00 SURCHARGE.**

- **RESTITUTION TO BE DETERMINED BY PROBATION, CDCR TO COLLECT.**

- **REGISTER PURS. TO PC 186.30 - GANG MEMBER.**

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: 9 0

10. ☐ This sentence is to run concurrent with (specify): _____

11. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify): _____

DATE SENTENCE PRONOUNCED 09-16-11	CREDIT FOR TIME SPENT IN CUSTODY 0	TOTAL DAYS INCLUDING: 0	ACTUAL LOCAL TIME 0	LOCAL CONDUCT CREDITS 0	☐ 4019 ☐ 2933.1	TIME SERVED IN STATE INSTITUTION: DMH CDCR CRC
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13. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ Other (specify): _____

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE A. Perez	DATE 09-19-11
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This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.